

# MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (this "Agreement") is made and entered into as of the Effective Date by and between the parties identified on the signature page (each, a "Party" and together, the "Parties").

1. Confidential Information. "Confidential Information" means any non-public information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party") that is designated as confidential in writing or that, given the nature of the information and the circumstances of disclosure, would reasonably be understood to be confidential.
2. Term. This Agreement shall remain in effect for two (2) years from the Effective Date. The confidentiality obligations set forth herein shall survive termination for a period of three (3) years.
3. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession and shall certify such return or destruction in writing.
4. Governing Law. This Agreement shall be governed by the laws of the State of Texas, without regard to its conflict of laws principles. The Parties consent to the exclusive jurisdiction of the state and federal courts located in Travis County, Texas.
5. Injunctive Relief. The Parties agree that monetary damages may be inadequate to remedy a breach of this Agreement, and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies.
6. Exclusions. Confidential Information does not include information that (a) is or becomes generally available to the public other than as a result of disclosure by the Receiving Party, (b) was known to the Receiving Party on a non-confidential basis prior to disclosure, or (c) becomes available to the Receiving Party on a non-confidential basis from a source other than the Disclosing Party.
7. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous communications, understandings, and agreements, whether oral or written.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PARTY A SIGNATURE: \_\_\_\_\_

PARTY B SIGNATURE: \_\_\_\_\_